

Nitij Arenja vs Angellina Arenja on 18 December, 2024

Author: Rekha Palli

Bench: Rekha Palli

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IN THE HIGH COURT OF DELHI AT NEW
MAT.APP.(F.C.) 430/2024

NITIJ ARENJA

ANGELLINA ARENJA

Through: Mr Prabhjit J
Raju, Advs.

CORAM:

HON'BLE MS. JUSTICE REKHA PALLI
HON'BLE MR. JUSTICE SAURABH BANERJ

% 18.12.2024

1. Since learned counsel for the respondent has put in appearance, the Caveat stands discharged.

CM APPL. 74080/2024- Exp

2. Exemption allowed, subject to all just exceptions.

3. The application stands disposed of.

MAT.APP.(F.C.) 430/2024 & CM APPL. 74079/2024- Stay

4. The present appeal under Sections 19 & 10 of the Family Courts Act, 1984 r/w Section 28 of the Hindu Marriage Act, 1955 seeks to assail This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 19/12/2024 at 22:40:05 the orders dated 05.09.2014 and 05.12.2024 passed by the learned Family Court-02, District South, Saket Courts, New Delhi in HMA NO. 104/2022. Vide the impugned order, the learned Family Court has allowed the application under Section 24 of the Hindu Marriage Act filed by the respondent by directing the appellant /husband to pay a sum of Rs.2,50,000/- to the respondent towards monthly

maintenance alongwith salary of Rs.20,000/- each for a Driver and a Maid.

5. Issue notice. Mr. Jauhar accepts notice and seeks dismissal of the appeal by urging that the appellant is a man of means and was himself voluntarily remitting a sum of Rs.2,20,000/- per month to the respondent, before the petition for divorce was filed. He prays for and is granted 4 weeks time to file a reply to the interim application.

6. In the meanwhile, taking into account the admitted position that the respondent is residing in a property for which she is presently not required to pay any rent, we are of the prima facie view that the amount of Rs.2,50,000/- directed by the learned Family Court towards monthly maintenance is on the higher side. We, accordingly, direct that by way of an interim arrangement, the appellant will, till the next date, in lieu of the directions issued under the interim order, pay a sum of Rs.2,00,000/- as monthly maintenance to the respondent alongwith expenses to be borne towards the salary of the Driver and the Maid as directed by the learned Family Court. The appellant will ensure that the amount in terms of this order is paid to the respondent on or before 7th of every month. Needless to state, this interim arrangement is being directed without prejudice to the rights and This is a digitally signed order.

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7. At this stage, learned counsel for the parties submit that the parties can explore the possibility of an amicable resolution of their disputes. They, therefore, pray that the matter may be referred to the Delhi High Court Mediation and Conciliation Centre (Mediation Centre).

8. Accordingly, at the joint request of the parties, the matter is referred to the Mediation Centre. List before the Mediation Centre on 16.01.2025, on which date the parties will remain present before the Mediation Centre either physically or through video conferencing.

9. List before the Court on 07.04.2025.

REKHA PALLI, J SAURABH BANERJEE, J DECEMBER 18, 2024 acm This is a digitally signed order.

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